

CALIFORNIA MONTH-TO-MONTH RESIDENTIAL RENTAL AGREEMENT

Independently prepared for private use directly between Landlord and Tenant

This Agreement concerns the residential property located at **1658 4th Street, Coachella, California 92236**. It is a direct agreement between the Landlord and the Tenant. No real estate broker, REALTOR®, property manager, or agent is a party to this Agreement. This document is a template. It has not been prepared, approved, or reviewed by an attorney, and it is not legal advice. Complete every blank before signing.

1. Parties

This Month-to-Month Residential Rental Agreement (the “Agreement”) is entered into by:

Landlord:

Full legal name:

LANDLORD FULL LEGAL NAME

Mailing address:

STREET, CITY, STATE, ZIP

Phone: _____ Email: _____

Tenant:

Full legal name:

TENANT FULL LEGAL NAME

Phone: _____ Email: _____

The word “Landlord” and the word “Tenant” include the plural where more than one person signs in that role, and each such person is jointly and individually responsible under this Agreement. The Landlord and the Tenant are together the “parties.”

2. Premises

The Landlord rents to the Tenant, and the Tenant rents from the Landlord, the residential dwelling located at **1658 4th Street, Coachella, California 92236** (the “Premises”).

The Premises are rented for residential use only. The following are included with the Premises (describe any parking space, storage, appliances, furnishings, or areas; write “none” if none):

ITEMS INCLUDED WITH THE PREMISES

The following areas or facilities are *not* included and are reserved to the Landlord or shared (describe, or write “none”):

3. Month-to-Month Term

The tenancy begins on _____, _____ (the “Beginning Date”) and continues from month to month.

This is a **month-to-month tenancy**. It has no fixed ending date. The tenancy continues each month until it is lawfully terminated as described in Section 24 (Month-to-Month Termination). A month of tenancy runs from the day rent is due through the day before rent is next due, unless the parties agree otherwise in writing.

4. Rent

The monthly rent is **\$1,000.00** (one thousand dollars) per month.

Rent is due in advance on the _____ day of each month (the “Due Date”). The first month’s rent of \$1,000.00 is due on or before the Beginning Date. If the tenancy begins on a day other than the Due Date, the first payment may be prorated by written agreement of the parties: prorated amount \$ _____ for _____ days.

Rent is payable to

NAME TO WHOM RENT IS PAID

by the method stated in Section 6. Rent is considered paid when the Landlord actually receives it. The Tenant must pay the full rent even if the Landlord has not sent a reminder or invoice.

Rent increases. Any change in the amount of rent will be made only by a written notice given for the number of days and in the manner required by California law and any applicable local ordinance, and only in an amount permitted by law.

5. Security Deposit

The Tenant will pay a security deposit of \$ _____, due on or before the Beginning Date. The deposit secures the Tenant’s performance of this Agreement.

The amount of the security deposit must comply with California Civil Code section 1950.5 as it applies to this Landlord and this Premises. Under current law the security deposit generally may not exceed one month’s rent, with a limited exception for certain small landlords who are natural persons. The parties should confirm the applicable limit before completing the amount above and must not exceed it.

The Landlord may use the deposit only for purposes allowed by law, which currently include unpaid rent, repair of damage beyond normal wear and tear, cleaning the Premises to the level of cleanliness at the start of the tenancy, and restoring or replacing personal property or keys when the rental agreement allows. After the tenancy ends and the Tenant gives up possession, the Landlord will return the deposit and provide any required itemized statement within the time and in the manner required by California law (currently 21 calendar days). The security deposit is not the last month’s rent, and the Tenant may not apply it to rent without the Landlord’s written agreement.

6. Payment Method and Location

Rent and other amounts are to be paid by the method or methods checked below, delivered to the place stated. The Landlord may change the method or place of payment on reasonable written notice, but may not require payment only in cash except as permitted by law.

Accepted method(s) (check all that apply): ☐ Personal check ☐ Cashier's check / money order ☐ Electronic transfer / online portal ☐ Other: _____

Make payment payable to:

PAYEE NAME

Deliver or send payment to (address, portal, or account details):

PAYMENT LOCATION / DETAILS

7. Returned Payments and Late Charges

If any rent is not received by the Landlord within _____ days after the Due Date, the Tenant agrees to pay a late charge of \$ _____. If any check or electronic payment is returned or declined for any reason, the Tenant agrees to pay a returned-payment charge of \$ _____.

Any late charge or returned-payment charge must comply with California law and may be set only in a legally permissible amount. A late charge is valid only if it is a reasonable estimate of the costs the Landlord is likely to incur because the payment is late; a charge that is a penalty is not enforceable. A returned-payment charge may not exceed the amount allowed by California Civil Code section 1719. If any amount written above exceeds what the law allows, the charge is reduced to the maximum the law allows, and the rest of this Agreement stays in effect.

Accepting a late payment, a late charge, or a partial payment does not waive the Landlord's right to insist on timely payment in the future or to pursue any remedy allowed by law.

8. Occupants

The Premises are rented for use as a private residence by the Tenant and by the following additional individuals expressly authorized to reside at the Premises (list full names; if none, write "none"):

AUTHORIZED OCCUPANT 1

AUTHORIZED OCCUPANT 2

AUTHORIZED OCCUPANT 3

Only the Tenant and the individuals named above are authorized to reside at the Premises or to use the Premises as a primary residence. No relative, family member, friend, partner, guest, or other person may establish residency at the Premises or use it as a primary residence without the Landlord's prior written approval. A person does not become an authorized occupant merely because that person is related to the Landlord or to the Tenant. Nothing in this Section removes or limits any right created by California law, including any right regarding occupancy, family status, or reasonable accommodation.

9. Guest Policy

The Tenant may have reasonable, temporary guests. A guest is a person who stays at the Premises temporarily and does not use the Premises as a residence.

No guest may remain for more than _____ consecutive nights, or more than _____ total nights during any twelve-month period, without the Landlord's prior written consent. A stay beyond these limits, or any attempt to establish residency, requires the Landlord's prior written approval and, if the parties agree, a written amendment adding the person as an authorized occupant.

A guest does not become an authorized occupant merely because the guest is related to the Landlord or to the Tenant. The Tenant is responsible for the conduct of guests as stated in the House Rules, to the extent permitted by law. This Section does not eliminate any right created by California law.

10. No Assignment, Subletting, Short-Term Rental, or Transfer

The Tenant may not assign this Agreement and may not sublease, license, rent, advertise for rent, or otherwise transfer possession of all or any part of the Premises, in each case without the Landlord's prior written consent.

The Tenant may not list, advertise, or offer the Premises, or any room or part of the Premises, on Airbnb, Vrbo, or any other short-term rental or home-sharing platform, and may not use the Premises for any short-term or transient rental. Any purported assignment, sublease, license, or transfer made without the Landlord's prior written consent is void and is a material breach of this Agreement. This Section does not eliminate any right created by California law.

11. Use of Premises

The Tenant will use the Premises only as a private residence for the authorized occupants and for no other purpose. The Tenant will not use the Premises for any business, trade, or activity that is prohibited by law, that requires a permit the Tenant does not hold, or that materially increases the Landlord's insurance or the risk to the Premises, without the Landlord's prior written consent.

The Tenant will not keep anything dangerous, flammable, or explosive on the Premises beyond normal household quantities, and will not create a nuisance or interfere with the quiet enjoyment of neighbors. This Section does not limit any lawful home occupation or accommodation the law requires the Landlord to allow.

12. Utilities and Services

Responsibility for utilities and services is allocated in the table below. For each item, mark who is responsible for placing the account in their name and paying it. Write "N/A" if the item does not apply to the Premises.

Utility / Service	Landlord Pays	Tenant Pays	Notes / Account or Provider
Electricity	☐	☐	
Gas / Propane	☐	☐	
Water	☐	☐	
Sewer	☐	☐	
Trash / Recycling	☐	☐	
Internet / Cable	☐	☐	
Landscaping / Yard	☐	☐	

Utility / Service	Landlord Pays	Tenant Pays	Notes / Account or Provider
Pest control (routine)	☐	☐	
Other: _____	☐	☐	

If any utility serving the Premises also serves another area or unit through a shared meter, the parties must complete the shared-utility disclosure identified on the Disclosure Checklist and agree in writing how that utility is paid. The Tenant will place required accounts in the Tenant's name by the Beginning Date where the Tenant is responsible, and will not allow any utility the Tenant is responsible for to be shut off during the tenancy.

13. Parking and Vehicles

Parking provided with the Premises (describe spaces, or write "none"):

PARKING PROVIDED

Only operable, registered, and insured vehicles may be parked in an assigned space. The Tenant will not repair vehicles on the Premises except minor emergency work, will not store inoperable or unregistered vehicles, and will not block driveways, walkways, or access. Number of vehicles permitted: _____. The Tenant will follow all posted and legal parking rules.

14. Condition of Premises and Move-In Inspection

The Tenant has examined the Premises and agrees they are in good, clean, and safe condition, except as noted on the Move-In Condition Checklist that is part of this package. The parties will complete and sign the Move-In Condition Checklist at or before move-in, and it becomes part of this Agreement.

Before the tenancy ends, the Tenant may request an initial move-out inspection as allowed by California law so the Tenant has an opportunity to fix items that could otherwise be deducted from the deposit.

15. Maintenance, Cleanliness, and Repairs

The Landlord will maintain the Premises in a habitable condition as required by California law, including keeping required systems and facilities in working order.

The Tenant will keep the Premises clean and sanitary; properly use and operate plumbing, electrical, gas, and appliances; dispose of trash properly; and avoid causing damage. The Tenant will promptly tell the Landlord, in writing when possible, about any needed repair, leak, mold, pest problem, or unsafe condition. The Tenant will not withhold notice of a problem. Except for repairs the Tenant is allowed by law to make, the Tenant will not perform repairs and charge the Landlord without the Landlord's agreement or a legal basis. This Section does not waive any repair-and-deduct or habitability right the Tenant has under California law.

16. Alterations

The Tenant will not paint, alter, add locks, install fixtures, mount items that require significant holes, or make other changes to the Premises without the Landlord's prior written consent. Any permitted alteration becomes part of the Premises unless the parties agree in writing that the Tenant will remove it and repair any damage. The Tenant will not change or add a lock in a way that denies the Landlord lawful access, and will give the Landlord a key to any

Landlord-approved new lock. This Section does not limit any modification the law requires the Landlord to allow, including a reasonable accommodation or accessibility modification.

17. Landlord Entry

The Landlord may enter the Premises only for reasons and in the manner allowed by California Civil Code section 1954. This generally means entry in an emergency; to make repairs, improvements, or agreed services; to show the Premises to buyers, lenders, workers, or prospective tenants; or as otherwise allowed by law or court order.

Except in an emergency, when the Tenant has moved out, or where the law allows otherwise, the Landlord will give the Tenant reasonable written notice (normally at least 24 hours) and will enter during normal business hours. The Landlord will not abuse the right of entry or use entry to harass the Tenant.

18. Smoke and Carbon Monoxide Devices

The Premises are equipped with working smoke alarms and, where required, carbon monoxide alarms as required by California law. The Tenant will not disable, remove, or tamper with any smoke or carbon monoxide alarm; will test the alarms; and will promptly tell the Landlord in writing if an alarm is not working or needs a battery. The Landlord will repair or replace alarms as required by law after receiving notice.

19. Insurance and Personal Property

The Landlord's insurance does not cover the Tenant's personal property or liability. The Landlord is not responsible for loss of or damage to the Tenant's belongings except to the extent the law makes the Landlord responsible. The Tenant is encouraged to obtain renter's insurance. Renter's insurance required by this Agreement? ☐ Yes ☐ No. If yes, minimum liability coverage: \$ _____.

20. Compliance With Laws

The Tenant and the Tenant's guests will obey all applicable federal, state, and local laws and ordinances while at the Premises, and will not use the Premises in any way that violates the law. The Landlord will comply with all laws that apply to the Landlord and the Premises. If any local ordinance of the City of Coachella or the County of Riverside applies to this tenancy, both parties will comply with it, and it controls over any conflicting term of this Agreement to the extent required by law.

21. Prohibited Conduct

The Tenant and the Tenant's guests will not: (a) engage in any unlawful activity on or from the Premises; (b) create a nuisance, or make threats or commit violence; (c) substantially interfere with the peaceful enjoyment of neighbors or other residents; (d) damage or allow damage to the Premises beyond normal wear and tear; (e) keep an unauthorized animal (pet policy, if any, is stated in the House Rules or an addendum); or (f) violate the House Rules. Conduct that is prohibited here may also be a breach under Section 23. This Section does not limit any right the Tenant has under California law.

22. House Rules

The House Rules and Material Terms attached to this Agreement are part of this Agreement. The Tenant agrees to follow them. The Landlord and the Tenant will initial each House Rule where indicated. If a House Rule ever conflicts with California law or a local ordinance, the law or ordinance controls, and the rest of the House Rules stay in effect.

23. Breach and Remedies

If the Tenant fails to pay rent or breaks any other part of this Agreement, or if the Landlord breaks this Agreement, the other party may pursue the remedies allowed by California law.

The Landlord may end the tenancy or seek to recover possession **only** by following the notice and legal procedures required by California law, including, when required, a written notice, a lawful reason, any required disclosures or relocation assistance, and a court action for unlawful detainer with a judgment and a writ carried out by the proper officer. The Landlord will not use any “self-help” method to remove the Tenant. The Landlord will not lock the Tenant out, remove or withhold the Tenant’s belongings, shut off or cause the shut-off of any utility, remove doors or windows, or use force, threats, or other unlawful means to make the Tenant leave. These acts are prohibited by California law (including Civil Code sections 789.3 and 1940.2), and nothing in this Agreement permits them.

Each party keeps every right and remedy the law gives. Choosing one remedy does not give up another. A delay in enforcing a right is not a waiver of that right.

24. Month-to-Month Termination

This is a month-to-month tenancy. It continues from month to month until it is lawfully terminated.

Tenant’s termination. The Tenant may end the tenancy by giving the Landlord written notice for at least the number of days required by California law (currently at least 30 days for a month-to-month tenancy), delivered as described in Section 25.

Landlord’s termination. The Landlord may end the tenancy only by giving the Tenant the written notice, and by satisfying every requirement, that California law and any applicable local ordinance require for this Premises and this tenancy. Depending on the facts, this may include a longer notice period (for example, 60 days when the Tenant has lived in the Premises a year or more), a legally sufficient reason (“just cause”) once the Tenant has occupied the Premises long enough for such protections to apply, required disclosures, and relocation assistance or a rent waiver for certain no-fault terminations.

No waiver of protections. Nothing in this Agreement waives, reduces, or limits any right or protection that California law or any applicable local ordinance gives the Tenant. Any term that would do so is void to that extent, and the rest of this Agreement stays in effect.

Tenant Protection Act not decided here. This Agreement does not decide whether the tenancy is or is not covered by, or exempt from, the California Tenant Protection Act (Civil Code sections 1946.2 and 1947.12) or any local ordinance. Whether a protection or an exemption applies depends on facts such as the type of property, who owns it, how it is occupied, how long the Tenant has lived there, and whether a legally sufficient exemption notice was properly given. No exemption is assumed. Any exemption must be handled through the separate, optional exemption addendum and only after the owner confirms the property qualifies and obtains legal guidance.

25. Notices

Written notices under this Agreement are effective when delivered in a manner allowed by California law. Notices to the Tenant may be delivered at the Premises. Notices to the Landlord are to be delivered to the Landlord’s name and address stated in Section 1 or on the Landlord Notice-Address Form in this package. Either party may change its notice address by written notice to the other. The parties may agree in writing to accept notices by email for routine, non-legal communications; legal notices must be given in the form and manner the law requires.

26. Entire Agreement

This Agreement, together with the House Rules, the Additional Agreed Terms page, the Move-In Condition Checklist, any signed disclosures, and any signed addendum, is the entire agreement between the parties about the Premises. It replaces any earlier oral or written understanding. Any change must be in writing and signed by both parties, except a change the law allows one party to make by proper notice (such as a lawful rent change or a lawful termination notice).

27. Severability

If any part of this Agreement is found to be unlawful or unenforceable, that part is limited or removed only to the extent needed, and the rest of the Agreement stays in full effect.

28. California Law

This Agreement is governed by the laws of the State of California and any applicable local ordinance. Where a term of this Agreement and the law differ, the law controls. This Agreement is meant to be read and applied in a way that is consistent with California law.

29. Additional Written Terms

Any additional terms agreed by the parties are written on the “Additional Agreed Terms” page in this package. To be effective, each additional term must be lawful and must be agreed to and initialed by both the Landlord and the Tenant. A handwritten or typed added term does not override California law, and an unenforceable added term does not invalidate the rest of this Agreement.

Required Statutory Notice — Database of Registered Offenders

Notice: Pursuant to Section 290.46 of the Penal Code, information about specified registered sex offenders is made available to the public via an Internet Web site maintained by the Department of Justice at www.meganslaw.ca.gov. Depending on an offender’s criminal history, this information will include either the address at which the offender resides or the community of residence and ZIP Code in which he or she resides.

30. Signatures

By signing below, each party states that they have read this Agreement, have completed the blanks that apply, understand it, and agree to it. This Agreement is not effective until signed by the Landlord and the Tenant. Each party should keep a signed copy.

Landlord signature

Tenant signature

Landlord printed name

Tenant printed name

Date

Date

HOUSE RULES AND MATERIAL TERMS

Attachment to the Month-to-Month Residential Rental Agreement

These House Rules are part of the Agreement. The Landlord and the Tenant initial each rule to show it was read and agreed. If any rule conflicts with California law or a local ordinance, the law or ordinance controls and the remaining rules stay in effect.

A. Quiet Hours

Quiet hours are from 10:00 p.m. until 8:00 a.m. During quiet hours, no excessive noise, amplified music, shouting, disruptive gatherings, or conduct that unreasonably disturbs neighbors is permitted.

Landlord

Tenant

B. Parties and Gatherings

No wild, excessive, commercial, or disruptive parties are permitted. Gatherings must not create excessive noise, parking problems, property damage, illegal activity, nuisance conditions, or unreasonable disturbance. All gatherings must comply with quiet hours beginning at 10:00 p.m.

Landlord

Tenant

C. Bonfires and Open Flames

No bonfires, fire pits, outdoor burning, fireworks, or other open flames are permitted unless: (1) the Landlord gives prior written approval; (2) the activity is legal under all applicable fire and municipal rules; (3) any required permit is obtained; and (4) no burn ban or fire restriction is in effect.

Landlord

Tenant

D. Guest Responsibility

The Tenant is responsible for the conduct of guests and for damage, nuisance, or lease violations caused by guests, to the extent permitted by law.

Landlord

Tenant

E. No Additional Residents

No additional relatives or other persons may move into or establish residency at the Premises without the Landlord's prior written approval.

Landlord

Tenant

F. No Illegal Activity

No unlawful activity, nuisance, threats, violence, or substantial interference with neighbors' peaceful enjoyment is permitted.

Landlord

Tenant

G. Property Care

The Premises must be maintained in a clean, sanitary, and reasonably safe condition.

Landlord

Tenant

Acknowledgment

The Landlord and the Tenant have read and agree to the House Rules above.

Landlord signature / Date

Tenant signature / Date

ADDITIONAL AGREED TERMS

Attachment to the Month-to-Month Residential Rental Agreement

Any additional term must be lawful. Each term must be agreed to and initialed by both the Landlord and the Tenant. A handwritten or typed term does not override California law. An unenforceable additional term does not invalidate the rest of the Agreement.

1. _____
2. _____
3. _____
4. _____
5. _____
6. _____
7. _____
8. _____
9. _____
10. _____
11. _____
12. _____

Landlord initials

Tenant initials

Landlord signature / Date

Tenant signature / Date